



CUBESMART®
self storage

SNOWPLOWING CONTRACT

(Completed by Agent's District Manager with Service Provider)

OWNER: CUBESMART ASSET MANAGEMENT, LLC
("Agent"), solely in its capacity as agent for the record owner
of the store ("Owner").

SERVICE PROVIDER:

STORE: The store or stores listed on Exhibit A attached hereto and made a part hereof.

CONTRACT TERM: ☐ _____ months beginning on _____, 20____ and expiring on _____, 20____. Owner may
terminate this Contract at any time upon 30 days prior written notice to Service Provider.
☐ One time service to occur on _____, 20____.

SERVICE DESCRIPTION

- Snowplowing in areas designated by Agent or Owner upon accumulation of 3" or more of snow, and continuing, one or more times, in accordance with generally acceptable industry standards to allow the store to safely open and operate business from 9:00 am – 6:00 pm Monday through Saturday (or during such other normal business hours of the store) ("Business Hours").
- Hand-shoveling all emergency doors.
- Apply sand or calcium chloride ("De-Icer"), one or more times, in accordance with generally acceptable industry standards to allow the store to safely open and operate during Business Hours; provided, however, that, if such application is identified as an additional fee per applicable in the Fees section below, then Service Provider shall obtain the General Manager's approval prior to performing such application. Notwithstanding the foregoing, if Service Provider discovers slippery or dangerous conditions (in Service Provider's reasonable discretion) during non-Business Hours or otherwise when the office at the store is closed, and the General Manager for the store is unavailable, then Service Provider may apply sand or calcium chloride without prior approval and notify Owner immediately thereafter.
- Place snow markers at all fire hydrants, sidewalks, abutments, driveways, etc. that are located in snowplowing path.
- The following additional services **ONLY** if box is checked:
 - ☐ Shoveling sidewalks at reasonable intervals pursuant to generally acceptable industry standards
 - ☐ Hand-shoveling around property at reasonable intervals pursuant to generally acceptable industry standards
 - ☐ Other (*specify and add fee in "FEE" section where indicated below*) _____
- The services described above are collectively referred to as the "Services" in this Contract.

FEES

TOTAL FEES PER ACCUMULATION* – BASIC SERVICES		TOTAL FEES PER ACCUMULATION* - ADDITIONAL SERVICES				Grand Total per Accumulation*
Snow Accumulation:	Fees	Shoveling Sidewalks**	Hand-Shoveling Property**	Other** (Describe):	Other** (Describe):	
3" - 6"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
7" - 9"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
10" - 12"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
13" - 15"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
16" - 18"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
19" - 23"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
24" - 29"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
30" - 35"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
36" - 42"	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
Each Additional inch	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
☐ Check One: _____						

Application of De-Icer as described above is included in Total Fees per Accumulation

Application of De-Icer is \$ _____ per application

***Total fee for entire accumulation amount regardless of number of times plowed, type of equipment used (including, without limitation, heavy machinery) and/or any other services performed.**

****Service to be provided and fee to be paid ONLY if corresponding box in Service Description section is checked.**

ADDITIONAL TERMS

- Service Provider shall obtain keys and/or gate codes from Agent or Owner in advance of any Services to allow Service Provider to access the store to perform the Services.
- **SERVICE PROVIDER WILL NOT PERFORM ANY SERVICES THAT ARE NOT LISTED ABOVE WITHOUT AGENT'S OR OWNER'S PRIOR WRITTEN APPROVAL.**
- **SERVICE PROVIDER MUST OBTAIN DISTRICT MANAGER'S PRIOR WRITTEN APPROVAL TO USE ANY HEAVY MACHINERY AT THE STORE; BUT THE (PER INCH) FEES ABOVE INCLUDE THE COST OF ANY HEAVY MACHINERY THAT MAY BE DESIRED AND/OR REQUIRED BY SERVICE PROVIDER TO COMPLETE THE SERVICES. SERVICE PROVIDER UNDERSTANDS AND AGREES THAT THIS CONTRACT INCLUDES ALL FEES TO COMPLETE THE SERVICES DURING THE CONTRACT TERM REGARDLESS OF THE AMOUNT OF SNOW AND/OR ICE AND REGARDLESS OF THE TYPE OF EQUIPMENT REQUIRED TO PERFORM THE SERVICES INCLUDING, WITHOUT LIMITATION, ANY HEAVY MACHINERY. IT SHALL BE DEEMED TO BE A MATERIAL BREACH OF THIS CONTRACT BY SERVICE PROVIDER IF SERVICE PROVIDER REFUSES TO PERFORM THE SERVICES AND/OR ATTEMPTS TO CHARGE FEES FOR THE SERVICES IN ADDITION TO THE FEES DESCRIBED ABOVE INCLUDING, WITHOUT LIMITATION, ANY SUCH FEES FOR HEAVY MACHINERY, AND OWNER SHALL HAVE THE RIGHT TO EXERCISE ANY AND ALL REMEDIES AVAILABLE TO OWNER UNDER THIS CONTRACT, AT LAW, OR IN EQUITY INCLUDING, WITHOUT LIMITATION, HOLDING SERVICE PROVIDER LIABLE FOR CONSEQUENTIAL DAMAGES.**
- **SERVICE PROVIDER WILL NOT PILE SNOW AGAINST ANY FENCE OR BUILDING AT THE STORE.**
- In consideration for the Fees described above, Service Provider will perform the Services at the store subject to the terms of this Contract. All work performed is to be completed in a clean, neat, and professional manner consistent with industry standards for services of a similar nature, and in accordance with all applicable laws, codes, and regulations. Service Provider shall not use any subcontractor's to perform any Services hereunder unless Service Provider obtains Owner's prior written approval which may be withheld in Owner's sole discretion.
- Service Provider will, within 30 days after Owner's written request, repair and/or replace, to the reasonable satisfaction of Owner, any damage to the store caused by Service Provider. If Service Provider fails to so repair and/or replace such damage, Owner may (in addition to any other remedies under this Contract, at law, or in equity) do so at Service Provider's cost which will be payable by Service Provider to Owner upon demand.
- Service Provider must obtain and maintain, during the Contract Term, the insurance described on Owner's Insurance Requirements Form which is incorporated into and made a part of this Contract. Prior to performing any work at the store, Service Provider shall deliver to Owner a Certificate of Insurance evidencing the insurance, including the additional insured endorsement, in Owner's Insurance Requirements Form.
- Service Provider will indemnify, defend, and hold harmless Owner, CubeSmart, CubeSmart, L.P., CubeSmart Asset Management, LLC, and each of their respective directors, officers, teammates, lenders, successors, and assigns (collectively, the "Owner Parties") from any and all claims, losses, costs, injuries, damages, liabilities, liens, actions, and causes of action of any kind (including court costs and reasonable attorneys' fees) arising out of or in connection with any act, omission, or negligence of Service Provider or any of its teammates, agents, invitees, and/or subcontractors.
- Service Provider will be responsible for any and all costs and expenses (including reasonable attorneys' fees and court costs) incurred by Owner to enforce the terms of this Contract.
- In addition to any other remedies under this Contract, at law, or in equity, each party hereto shall have the right to terminate this Contract if the other party fails to cure a default or breach hereunder within 10 days after receipt of written notice thereof.
- This Contract, including the Insurance Requirements Form, is the entire agreement of the parties and there were no verbal representations, warranties, understandings, agreements or promises pertaining to the subject matter of this Contract or the Insurance Requirements Form that are not incorporated in writing in this Contract.
- This Contract may not be altered, waived, or amended except by a written instrument signed by each party hereto.
- All payment, repair, replacement, and indemnity obligations in this Contract will survive the expiration or termination of this Contract, **except all Fees invoices must be tendered to Owner within sixty (60) days after completion of the Services, after which such Fee invoices will no longer be honored.**
- Service Provider may not assign this Contract without Owner's prior written consent which may be withheld in Owner's discretion. Owner may assign this Contract, at any time, to Owner's successor or nominee by giving Service Provider written notice thereof.
- Agent is entering into this Contract solely in its capacity as duly authorized agent for Owner. Nothing contained herein shall be construed as creating any liability of Agent for any obligation in any capacity other than as the duly authorized agent of Owner.
- The individuals signing this Contract on behalf of Service Provider and Owner represent and warrant that they are duly authorized to enter into this Agreement and to bind Service Provider and Owner, respectively, and that this Contract, when duly executed and delivered by the parties hereto, will constitute the valid and legally binding obligation of the parties hereto and will be enforceable against such parties in accordance with its terms.
- In any construction of the terms of this Contract, the same shall not be construed against either party on the basis of that party being the drafter of such terms.

Service Provider Signature:

Date:

Owner Signature (by the District Manager of Agent, solely in its capacity as duly authorized agent for Owner):

Date:

EXHIBIT A

LIST STORE ADDRESS AND PHONE NUMBERS

INSURANCE SCHEDULE

Service Provider and any subcontractor must maintain, during the term of the Agreement, the following insurance with the following minimum limits:

<u>Insurance Type:</u>	<u>Minimum Limit:</u>
• <i>Workers Compensation Insurance:</i>	<i>As required by state Law</i>
• <i>Employer's Liability coverage:</i>	\$1,000,000
• <i>Commercial General Liability Insurance:</i>	
1. Each Occurrence Minimum Limit	\$1,000,000
2. General Aggregate Minimum Limit	\$2,000,000
3. Personal Injury and Advertising Injury Minimum Limit	\$1,000,000
4. Medical Expense Minimum Limit (Any One Person)	\$ 5,000
• <i>Commercial Automobile Liability</i> covering owned, hired, and non-owned vehicles:	\$1,000,000 each accident
• <i>Umbrella and Excess Liability coverage:</i>	\$5,000,000 each occurrence

All Commercial General Liability insurance must be written on ISO Occurrence Form CG 00 01 12 04 or a substitute form providing equivalent coverage)

General Provisions

(a) **Additional Insureds:** The following parties shall be included as additional insureds under all Commercial General Liability policies using ISO additional insured endorsement CG 20 10 11 85 or a substitute providing equivalent coverage, and under the commercial umbrella:

CubeSmart
CubeSmart, L.P.
CubeSmart Management, LLC
CubeSmart Asset Management, LLC
The record owner of the Facility
Each of the above entities' directors, officers, employees, and lenders.

(b) **Primary Insurance.** The above insurance shall apply as primary insurance with respect to any other insurance or self-insurance programs afforded to CubeSmart. There shall be no endorsement or modification of the Commercial General Liability to make it excess over other available insurance; alternatively, if the Commercial General Liability policy states that it is excess or pro rata, the policy shall be endorsed to be primary with respect to the additional insured.

(c) **Waiver of Rights.** Service Provider waives all rights against CubeSmart for recovery of damages to the extent these damages are covered by the workers compensation and employer's liability or commercial umbrella liability insurance obtained by Contractor. Where permitted by Law, Service Provider shall obtain an endorsement equivalent to WC 00 03 13 to affect this waiver.

(d) **Insurance Company.** All insurance must be written by insurers reasonably acceptable to CubeSmart and subject to a minimum A.M. Best's rating of A-.

(e) **Notice of Expiration/Non-Renewal.** All policies of insurance shall contain clauses or endorsement to the effect that 30 days written notice will be given to CubeSmart if canceled or non-renewed.

(f) **Certificates of Insurance.** Duly executed certificates of insurance providing evidence of compliance with the above requirements and reflecting the expiration date of the insurance coverage must be provided to CubeSmart prior to commencement of any services and, thereafter, upon CubeSmart's request. Failure of CubeSmart to demand a certificate of insurance or to identify a deficiency in any certificate of insurance shall not be construed as a waiver of Contractor's and subcontractor's obligation to maintain this insurance.